

25NWCV00072 25NWCV00072

County: los-angeles

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Case Number: 25NWCV00072 Hearing Date: September 21, 2026 Dept: C

ABREGO vs FCA US LLC.

CASE NO.: 25NWCV00072

HEARING: 9/21/26 @ 9:30 AM

#18

TENTATIVE RULING

I.

The Court will hear from the parties regarding the remaining discovery in dispute following Defendant FCA US LLC's Supplemental Responses to Plaintiff BRYAN ABREGO's Motion to Compel Compliance to Plaintiff's Request for Production of Documents, Set One. No Sanctions.

II.

Plaintiff's Motion for

Terminating Sanctions is ADVANCED from November 30, 2026 to today and DENIED.

Moving Party to give NOTICE.

On

August 3, 2026, Plaintiff BRYAN ABREGO (Plaintiff) filed the instant motion to compel Defendant FCA US LLC (Defendant) to comply with its Statement of Compliance to Plaintiff's Request for Production, Set One, Nos. 30, 31, 33-35, and 40-43, and for monetary sanctions.

On

August 28, 2026, Plaintiff filed a motion for terminating sanctions, or in the alternative, issue and evidentiary sanctions based upon the discovery at issue in the instant motion. The motion for terminating sanctions is scheduled for hearing on November 30, 2026.

On

September 3, 2026, Defendant served Supplemental Responses to Plaintiff's Request for Production, Set One. Defendant argues that it has now fully complied with Plaintiff's Request for Production, Set One. However, Plaintiff contends that Defendant's Supplemental Responses are still incomplete and that RFP Nos. 33, 35 and 40-43 remain at issue.

Trial

is scheduled for October 6, 2026.

Background

This lemon law action was filed on January 9, 2025. The Complaint alleges that Plaintiff purchased a 2023 Dodge Charger ("Subject Vehicle"). Plaintiff alleges that before Plaintiff ever purchased that vehicle, Defendant issued a Technical Service Bulletin ("TSB") 03-002-23 addressing a manufacturing defect, or tolerance variation, that directly impacted the rear differential of the 2023 Dodge Charger. To remedy this manufacturing issue, Defendant instructed its dealers to replace the rear differential. Defendant never replaced the rear differential on Plaintiff's vehicle and less than five months after Plaintiff purchased his vehicle, the rear differential broke while Plaintiff was driving and operating the vehicle.

Relevant Procedural

History

On November 4, 2025, Plaintiff served his first set of written discovery, including Request for Production, Set One, on FCA. (Melton Decl., ¶8.)

On December 4, 2025, FCA served its response to Plaintiff's Request for Production, asserting only

boilerplate objections to Request Nos. 30-31, 33-35, 37, and 40-43, without producing any documents or providing a statement of compliance as to those requests. (Id., ¶9.)

On February 4, 2026, Plaintiff moved to compel further responses to Request for Production. (Id., ¶10.)

On April 30, 2026, FCA served a Supplemental Response to Plaintiff's Request for Production in which FCA withdrew most of its objections and represented, that it would produce documents responsive to Request Nos. 30, 31, 33-35, and 40-43. (Id., ¶11.)

On May 12, 2026, the Court denied as moot Plaintiff's motion to compel further responses to RFP Nos. 30-31, 33-35, and 40-43 because supplemental responses had been served on April 30, 2026. As to RFP No. 37, the Court agreed with Plaintiff that evidence of design changes to the driveshaft may tend to show Defendant's knowledge of an underlying design defect, and such evidence is within the proper scope of discovery. As written, however, the Court found that RFP No. 37 is overbroad and vague. For example, the request fails to specify the type of documents requested and the relevant time-period. The Court ordered the parties to meet and confer regarding the scope of RFP No. 37 and advise the Court if further Court intervention is needed.

On August 3, 2026, Plaintiff filed the instant motion on the grounds that Defendant failed to comply with its own Statement of Compliance to Plaintiff's Request for Production, Set One, pursuant to Code of Civil Procedure section 2031.320 and Code of Civil Procedure section 2023.010.

Legal Standard

Under CCP § 2031.320 if a party filing a response to a demand for inspection, copying, testing, or sampling under Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may

move for an order compelling compliance.

Discussion

In

opposition to the motion, Defendant contends that the parties did meet and confer regarding RFP No. 37, Plaintiff's Counsel advised that she was unsure what documents would be responsive to this request. (Gregg Decl., ¶10.) Plaintiff's Counsel then indicated that she would schedule an Informal Discovery Conference with the Court, which never did occur. (Id., ¶11.) Further, Defendant contends that on September 3, 2026, Defendant supplemented its production as promised, producing over 3,300 documents relating to repurchases of other 2023 Dodge Charger vehicles, other customer complaints, and other customer assistance logs related to other 2023 Dodge Charger vehicles. (Id., ¶12.) Defendant asserts that production of the supplemental response was delayed because of the complexity of the search. (Id., ¶13.) Defendant argues that the instant motion should now be denied as moot because Defendant has fully complied with its Supplemental Responses to Requests for Production. (Id., ¶14.) Defendant remains willing to participate in an Informal Discovery Conference to address RFP No. 37. (Id., ¶15.)

In

Reply, Plaintiff contends that Defendant still has not produced "backup documentation and internal analysis related to the decision to issue any Recalls or CSNs, if found" (Ex. 5, No. 33), failure rate data (Ex., 5, No. 35), and documents and information exchanged between FCA and its dealer related to the faulty driveshaft (Ex. 5, Nos. 40- 43). Plaintiff's Reply is not accompanied by a declaration from counsel attesting to these facts.

The

Court also observes that Plaintiff has failed to include a separate statement with its moving papers as required by CRC, Rule 3.1345. Plaintiff merely refers the Court to Exhibit 5 of counsel's declaration which is a copy of Defendant's April 30, 2026 Supplemental Response.

"A

separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement

must be full and complete so that no person is required to review any other document in order to determine the full request and the full response. Material must not be incorporated into the separate statement by reference." (CRC, Rule 3.1345, subd. (c).) Plaintiff's failure to include a separate statement with the motion to compel compliance is grounds for denying the motion. However, the Court will exercise its discretion to hear the motion on the merits.

The

Court will hear from the parties regarding the RFPs which remain in dispute following Defendant's supplemental responses.

They are listed below.

Request

for Production of Documents No. 33

RFP

No. 33: "All DOCUMENTS which evidence any investigation YOU conducted into clicking or grinding noises when accelerating in the 2022-2023 Dodge Charger."

FCA's

Supplemental Response: "FCA US has conducted a diligent search and reasonable inquiry and will comply in full with this request and produce all responsive documents within its possession, custody or control, concerning "clicking or grinding noises when accelerating", which includes any Recalls or Customer Satisfaction Notifications (CSNs) that may be applicable to the Subject Vehicle. FCA US will also conduct a diligent search and produce, subject to protective order, any available backup documentation and internal analysis related to the decision to issue any Recalls or CSNs, if found."

Request for Production

of Documents No. 35

RFP No. 35: "All

DOCUMENTS which evidence YOUR investigation, if any, into the root cause of the failures in the SUBJECT VEHICLE."

FCA's Supplemental

Response: "FCA states that it does not track R/1000 data. To the extent Plaintiff seeks failure rate data, FCA US will conduct a diligent search and reasonably inquiry and produce, subject to protective order, all responsive

documents found related to warranty claims and failure rates data (c/1000 and MOP/MIS), for the same make, year, and model of the Subject Vehicle.”

Request for Production
of Documents No. 37

RFP No. 37: All

DOCUMENTS which evidence any changes to the design of the driveshaft of the 2023 Dodge Charger to address concerns with the driveshaft.

FCA's Response: "FCA US objects to this request because it is overly broad and seeks information neither relevant nor reasonably calculated to lead to the discovery of admissible evidence and not proportional to the needs of the case. FCA US specifically objects to the phrase "All DOCUMENTS..." as being vague and ambiguous because it fails to describe with reasonable particularity and specificity a category of documents it is seeking. FCA US further objects to this request because the phrase "changes to the design of the driveshaft " lacks foundation and is vague, ambiguous, argumentative, misleading, nonsensical, and not limited to any part, component or system that could be subject to an investigation or related to the underlying claims in this case."

Request for Production
of Documents No. 40

RFP No. 40: "All

DOCUMENTS which evidence the information YOU requested from YOUR field of U.S. dealers and repair facilities related to the driveshaft of the 2023 Dodge Charger."

FCA's Supplemental

Response: "FCA US will comply in full with this request. FCA US has conducted a diligent search and reasonable inquiry and will produce, pursuant to a protective order, related customer assistance inquiry records based upon the search terms in the repair orders applicable to the same year, make, and model as the Subject Vehicle ("SYMM CAIRs") in the State of California."

Request for Production
of Documents No. 41

RFP No. 41: "All

DOCUMENTS which evidence the information YOU received from YOUR field of U.S. dealers and repair facilities related to the driveshaft of the 2023 Dodge Charger."

FCA's Supplemental

Response: "FCA US will comply in full with this request. FCA US has conducted a diligent search and reasonable inquiry and will produce, pursuant to a protective order, related customer assistance inquiry records based upon the search terms in the repair orders applicable to the same year, make, and model as the Subject Vehicle ("SYMM CAIRs") in the State of California."

Request for Production
of Documents No. 42

RFP No. 42: "All

DOCUMENTS which evidence the information YOU requested from YOUR field of U.S. dealers and repair facilities regarding broken driveshafts in the 2023 Dodge Charger."

FCA's Supplemental

Response: "FCA US will comply in full with this request. FCA US has conducted a diligent search and reasonable inquiry and will produce, pursuant to a protective order, related customer assistance inquiry records based upon the search terms in the repair orders applicable to the same year, make, and model as the Subject Vehicle ("SYMM CAIRs") in the State of California."

Request for Production
of Documents No. 43

RFP No. 43: "All

DOCUMENTS which evidence the information YOU received from YOUR field of U.S. dealers and repair facilities regarding broken driveshafts in the 2023 Dodge Charger."

FCA's Supplemental

Response: "FCA US will comply in full with this request. FCA US has conducted a diligent search and reasonable inquiry and will produce, pursuant to a protective order, related customer assistance inquiry records based upon the search terms in the repair orders applicable to the same year, make, and model

as the Subject Vehicle ("SYMM CAIRs") in the State of California."

Sanctions

As to sanctions, the

Court finds that Defendant has acted with substantial justification given the delay associated with the production of over 3,300 documents. Thus, no sanctions are imposed in connection with the motion.

The Court is not

inclined to impose any other discovery sanctions at this time. Plaintiff's Motion for Terminating Sanctions, or in the alternative, issue and evidentiary sanctions is based upon the same record as Plaintiff's Motion to Compel Compliance. Thus, Plaintiff's Motion for Terminating Sanctions is ADVANCED from November 30, 2026 to today and DENIED. If the Court issues additional orders at the hearing and Defendant fails to comply with them, Plaintiff may renew the request for additional discovery sanctions.